

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

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1 64

2. CONTRACT NUMBER	3. SOLICITATION NUMBER 80KSC026R0004	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED 4/23/2026	6. REQUISITION/PURCHASE NUMBER SEE SCHEDULE
7. ISSUED BY NASA KENNEDY SPACE CENTER Office of Procurement KENNEDY SPACE CENTER, FL 32899 United States		CODE 80KSC0	8. ADDRESS OFFER TO (If other than item 7) John F. Kennedy Space Center, NASA, Procurement Office Code: OP-CS, Headquarters Central Campus, Bldg. M7-0301 https://nasagov.box.com/s/dmn6rpb40txoi9xjo3xyh5nygy9r4by Kennedy Space Center, FL 32899 United States	

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 2:00 PM ET local time 5/27/2026
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME Noel, LaCorsha D. (KSC-OPCS0)	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS lacorsha.d.noel@nasa.gov
		AREA CODE	NUMBER	EXTENSION

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OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT See Schedule	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print) Jacqueline Brooks	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

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Section B - Supplies or Services and Prices/Cost

Additional Information/Notes

B. 1 INDEFINITE DELIVERY/INDEFINITE QUANTITY TASK ORDER CONTRACT

This acquisition is for a regional multiple award, indefinite-delivery indefinite-quantity (IDIQ) contract for Architecture and Engineering services for the design and other professional services necessary to rehabilitate, modernize, and/or develop new systems for facilities and Ground Support Systems (GSS) across all of the following locations: Kennedy Space Center (KSC), including Cape Canaveral Space Force Station (CCSFS); Stennis Space Center (SSC); Johnson Space Center (JSC); Marshall Space Flight Center (MSFC), including Michoud Assembly Facility (MAF), with the possibility of performance at other NASA assets and Centers nationwide. Additional information related to NASA site locations can be found at <https://www.nasa.gov/centers-and-facilities/>.

All work requirements will be cited in the individual Task Orders issued by the Contracting Officer in accordance with the task ordering procedures provided in Section H.1, Task Order Placement Process. The ordering period for work is stated below:

The duration of the contract shall consist of a five (5) year ordering period from the date of contract award, with an option period up to 6 months.

Task Orders will be individually funded as they are issued under the Contract and the total value of Task Orders issued under the Contract will not exceed \$150 million for the five (5) year ordering period, with an option period up to six months. All terms and conditions of the Contract are applicable to every Task Order issued unless specified otherwise. Fill-in data for clauses requiring fill-ins will be provided in the Task Order solicitations and/or in the Task Orders themselves.

B.2 PROPOSED CONTRACT INFORMATION

This acquisition will be conducted under full and open competition procedures allowing maximum participation from large and small businesses. The NAICS Code and small business size standard for this procurement is 541330 and \$25.5 million respectively.

Work will be accomplished as individual firm-fixed-price task orders under each IDIQ contract. Pursuant to FAR 19.502-4(c), the Contracting Officer may set aside orders directly to small business concerns. If the task order is not set aside for small business concerns, the Contracting Officer will provide the contract awardees opportunity to be considered for each task order consistent with FAR 16.500(d); FAR 36.202, Architect and Engineering Services; and with the Task Order Placement Process incorporated in the contracts.

B.3 BID SCHEDULE

This office intends to award up to ten (10) Indefinite Delivery, Indefinite Quantity contracts, with up to three (3) awards reserved for small business concerns from this solicitation.

B. 4 Firm Fixed Price (NASA FAR Supplement (NFS)) (1852.216-78) (DEC 1988)

The total firm fixed price of this contract is **(Each Task Order will be firm fixed price).**

****The period of performance (ordering period) indicated in the 'Dates' column below will be five (5) years from the date of the IDIQ award. The dates currently shown (October 1, 2026 through September 30, 2031) are provided as estimates and are subject to adjustment based on the actual IDIQ award date.***

Item	Supplies/Service	Dates	Quantity	Unit	Unit Price	Amount
0001	Provide A-E Professional Services in accordance with Article C-1 Scope of Work Product Service Code: C219 Severability: Yes Firm Fixed Price	Period of Performance From 01 OCT 2026 To 30 SEP 2031	1.0	Job		

Section C - Description/Specifications/Statement of Work

C. 1 STATEMENT OF WORK

The scope of work includes A-E services for engineering infrastructure, equipment, and facilities, including the following:

Relevant work for the purposes of this solicitation is defined as, specialized experience in engineering analysis and design, with major emphasis on ordinary and complex systems and infrastructure including but not limited to the following disciplines:

Civil - water distribution, wastewater collection, stormwater management, parking facilities and roadways including traffic signals, landfills, dredging for transportation channels and canals, coastal management, railroads, demolition, airfields, specialized ground transportation infrastructure (>500,000 pounds carrying capacity), security systems and force protection, geotechnical evaluations, and associated infrastructure and utilities.

Structural - movable structures and mechanisms; cranes, lifting mechanisms and structures, launch structures, towers - guyed and free-standing; large frame structures; port facility structures - wharf and docks; structural support components such as foundations, framing - main resisting members, roof, siding; large and unique foundations, ground support equipment, and bridges.

Mechanical - mechanical systems and equipment such as Heating, Ventilating, Air Conditioning (HVAC), fire protection, process water distribution and collection, pneumatic systems, environmental control systems (single pass launch vehicle purge); systems for storage and distribution of cryogenics and gases (including high pressure gases), and clean rooms (class 100,000 to class 100 per FED-STD-209E and/or ISO 14644-1).

Electrical - low, medium, and high voltage power distribution, emergency power generation, data/control centers, renewable energy technologies, lighting systems, surge suppression, lightning protection, fire alarm and detection systems, electronic security systems (ESS), electrical control systems, heating ventilation and air conditioning (HVAC) controls, and centralized networking and monitoring.

Architecture - minor emphasis; firm must also include experience in multi-discipline facility design including architecture, life safety, and sustainable Green design.

Additional Experience - Specialized experience in multiple project phases: Planning and feasibility studies, coordination with the appropriate State agencies and NASA Historical Preservation Office for the demolition of certain facilities across NASA centers, Preliminary Engineering Reports, Final Design, Environmental Permitting, Construction, and Activation/ Commissioning.

The A-E services required for this contract will include, but are not limited to, the following: conducting field investigations and surveys, preparing engineering reports with recommended actions, preparing trade studies, preparation of designs, specifications, reports and other contract documents suitable for competitive bidding and for environmental permitting, and providing construction site inspection and engineering support during construction. The A-E firm will perform computer aided design and analysis, specification writing, and detailed construction scheduling and cost estimating. The A-E firm's approved designs will typically be utilized for the advertising and award of fixed price construction contracts; however, alternative procurement techniques may be utilized; such as design-build bridging and performance work statements.

The A-E services will be performed across all project phases including planning and feasibility studies, permitting, preliminary engineering reports, final design, engineering services during construction (ESDC), activation and commissioning. The engineer of record will have first right of refusal for ESDC task orders if original design went through TQN process. Development of detailed construction schedules will be required

during development of studies, preliminary reports and final designs. The A-E services also include design services and technical assistance during bidding of construction efforts.

The A-E services also includes engineering services during construction including review of shop drawings, requests for information, deviation waivers, resolution of problems, construction inspection services, generation of field reports, review of construction record drawings and creation of as-built construction drawings, etc. Cost estimating may be required across all project phases. Different types of cost estimating will include, but not be limited to, cost-benefit analysis, life cycle cost analysis, parametric cost estimating, detailed cost estimates /quantity takeoffs, and subsequent estimating performance against bids received. A-E firms may also be required to perform studies of alternative solutions, technical requirement development and including final study or trade report compilation.

Additionally, the A-E services will provide engineering services as required to perform third party plans review of proposed facilities and infrastructure in accordance with applicable building codes and standards as required by RFPs NASA will issue. This will typically require plans review conducted by applicable state registered building code administrator, plans examiner, and fire protection engineer. This may include plans review by additional engineering disciplines as required in specific RFPs. This process will require providing reports indicating whether plans are compliant or non-complaint with applicable building codes, along with items and code requirements not complied with and/or items that require deconfliction/clarification.

A-E firms must have the capacity to perform all the work tasks identified in this solicitation and the capacity to work multiple projects at the same time, potentially through different NASA centers.

Requirements

This acquisition is for Architect-Engineer (A-E) Services for the design and other professional services necessary to rehabilitate, modernize, and/or develop new systems for facilities, utilities, and ground support systems (GSS) across all of the locations mentioned above.

Section D - Packaging and Marking

Section is intentionally left blank

Section E - Inspection and Acceptance

E. 1 FINAL INSPECTION AND ACCEPTANCE

Final inspection and acceptance of all work under the contract will be conducted by the Contracting Officer's Representative (COR). Upon satisfactory completion of each task order, the Contractor shall be paid the fixed-price value of the task order, less the amount of any progress payments made under FAR Clause 52.232.10, Payments Under Fixed-Price Architect-Engineer Contracts.

Section F - Deliveries or Performance

F. 1 PERIOD OF PERFORMANCE

The ordering period for the placement of Task Orders under the Contract is:

A five (5) year ordering period from the date of contract award, with an option period up to six months

The performance periods for Task Orders will vary depending on the scope, urgency of the project, and other factors. The period of performance of orders placed within the contract ordering period shall comply with the bona fide need rule and principles of federal appropriations law.

F. 2 PLACE OF PERFORMANCE

The services to be performed under the Contract are for the Kennedy Space Center (KSC), including Cape Canaveral Space Force Station (CCSFS); Stennis Space Center (SSC); Johnson Space Center (JSC); Marshall Space Flight Center (MSFC), including Michoud Assembly Facility (MAF), with the possibility of performance at other NASA assets and Centers nationwide.

****The period of performance (ordering period) indicated in the 'Delivery Schedule' column below will be five (5) years from the date of the IDIQ award. The dates currently shown (October 1, 2026 through September 30, 2031) are provided as estimates and are subject to adjustment based on the actual IDIQ award date.***

Contractor
Destination

0001	Delivery Schedule
	Period of Performance From 01 OCT 2026 To 30 SEP 2031

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.242-14	Suspension of Work.	Apr 1984

Section G - Contract Administration Data

FAR Clauses Incorporated by Full Text

52.216-32 Task-Order and Delivery-Order Ombudsman. (SEP 2019)

(a) In accordance with [41 U.S.C. 4106](#)(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

Denise Thaller

NASA Headquarters

Mail Code: HQ:7U27

Washington, DC 20546

202-358-2009

denise.r.thaller@nasa.gov

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

NFS Clauses Incorporated by Full Text

1852.232-80 Submission of Vouchers/Invoices for Payment. (APR 2018)

(a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.

(b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information Web site at: <https://www.nssc.nasa.gov/vendorpayment>. Please contact the NSSC Customer Contact Center at 1-877-NSSC123 (1-877-677-2123) with any additional questions or comments.

(c) *Payment requests.*

(1) The payment periods are stipulated in the payment clause(s) contained in this contract.

(2) Vouchers submitted under cost type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) *Vouchers.*

(A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.

(B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.

(C) Indirect rate(s) used to calculate the amount of billed indirect expenses.

(D) Progress reports, as required.

(ii) *Invoices.*

(A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.

(B) Progress reports, as required.

(C) Date goods and services were performed.

(iii) *Fee vouchers.*

(A) Listing of all provisionally-billed fee by period or date earned since contract award.

(B) A reconciliation of all billed and earned fee.

(C) A clear explanation of the fee calculations.

(d) *Non-electronic payment requests.* The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at <https://www.nssc.nasa.gov/vendorpayment>, when any of the following conditions are met:

(1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.

(2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.

(e) *Improper vouchers/invoices.* The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoice within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in [paragraph \(b\)](#) of this section.

(f) *Other payment clauses.* In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

1852.245-82 Occupancy Management Requirements (DEC 2025) (Deviation)

(a) In addition to the requirements of the clause at FAR 52.245–1, Government Property, as included in this contract, the Contractor must comply with the following in performance of work in and around Government real property:

- (1) NPD 8800.14F Policy for Real Estate Management.
- (2) NPR 8831.2F, Facilities Maintenance and Operations Management.

(b) The Contractor must obtain the written approval of the Contracting Officer before installing or removing Contractor-owned property onto or into any Government real property or when movement of Contractor-owned property may damage or destroy Government-owned property. The Contractor must restore damaged property to its original condition at the Contractor's expense.

(c) The Contractor must not acquire, construct or install any fixed improvement or structural alterations in Government buildings or other real property without the advance, written approval of the Contracting Officer. Fixed improvement or structural alterations, as used herein, means any alteration or improvement in the nature of the building or other real property that, after completion, cannot be removed without substantial loss of value or damage to the premises. Title to such property must vest in the Government.

(d) The Contractor must report any real property or any portion thereof when it is no longer required for performance under the contract, as directed by the Contracting Officer.

(End of clause)

1852.245-83 Real Property Management Requirements (DEC 2025) (Deviation)

(a) In addition to the requirements of the FAR Government Property Clause incorporated in this contract (FAR 52.245–1), the Contractor must comply with the following in performance of any maintenance, construction, modification, demolition, or management activities of any Government real property:

- (1) NPD 8800.14F, Policy for Real Estate Management.
- (2) NPR 8831.2F, Facilities Maintenance and Operations Management.

(b) Within 30 calendar days following award, the Contractor must provide a plan for maintenance of Government real property provided for use under this contract. The Contractor's maintenance program must enable the identification, disclosure, and performance of normal and routine preventative maintenance and repair. The Contractor must disclose and report to the Contracting Officer the need for replacement and/or capital rehabilitation. Upon acceptance by the Contracting Officer, the program must become a requirement under this contract.

(c) Title to parts replaced by the Contractor in carrying out its normal maintenance obligations must pass to and vest in the Government upon completion of their installation in the facilities. The Contractor must keep the property free and clear of all liens and encumbrances.

(d) The Contractor must keep records of all work done to real property, including plans, drawings, charts, warranties, and manuals. Records must be complete and current. Record of all transactions must be auditable.

The Government must have access to these records at all reasonable times, for the purposes of reviewing, inspecting, and evaluating the Contractor's real property management effectiveness. When real property is disposed of under this contract, the Contractor must deliver the related records to the Government.

(e) The Contracting Officer may direct the Contractor in writing to reduce the work required by the maintenance program authorized in paragraph (b) of this clause at any time.

(End of clause)

Section H - Special Contract Requirements

H. 1 TASK ORDER PLACEMENT PROCESS

A. The Government will provide all of the A-E IDIQ contractors fair opportunity to be considered for each task order exceeding \$15,000 unless one of the statutory exceptions in FAR 16.507-6 applies.

B. The task order solicitation is a request for proposal only and does not constitute authority to proceed or to incur any costs associated with contract performance. No legal liability on the part of the Government for any payment may arise until a task order is issued by the Contracting Officer.

C. In consideration for the Government's selection and placement of the IDIQ contractor into a limited competitive pool for multiple A-E projects, the IDIQ contractor agrees to propose on each requirement for which it is solicited. Notification of "Intent to Not Submit" for a requirement shall be provided to the Contracting Officer within seven days of receipt of the request for proposal and shall include the rationale. Contractors with frequent recurring "Intent to Not Submit" responses may not be invited to respond to TQNs for task orders of similar scope.

D. By submitting a proposal in response to a task order solicitation, the offeror agrees to comply with all terms and conditions contained in the task order and the contract.

E. The Contracting Officer from the applicable NASA center will solicit task order proposals by initially issuing requests for Technical Qualifications Narratives (TQNs). The Contractors will normally be provided 15 days for submission of technical qualifications narratives.

F. Each technical qualification narrative will be evaluated, as follows:

- (1) Professional experience and technical competence in A-E services in the following: civil, structural, mechanical, electrical, architecture and additional experience;
- (2) Professional qualification necessary for satisfactory performance of required services;
- (3) Past performance;
- (4) Capacity to accomplish multiple task orders;
- (5) Location in the general geographical area and knowledge/experience at NASA center locations;
- (6) Acceptability under other appropriate evaluation criteria stated in the request for technical narratives (such as, but not limited to, technical approach.

G. Following the technical evaluation, the Contracting Officer will request a cost proposal from the most highly qualified firm. The Contractor will normally be provided 15-30 days for submission of the cost proposal. The proposal may be submitted in any format provided that it contains a cost breakdown with supporting data in sufficient detail to allow for a complete understanding of the proposed price. Proposed prices shall be in accordance with the rates and other factors cited in the rate schedule.

H. Task orders shall be placed in writing and only by the Contracting Officer. The task order is effective when signed and dated by the Contracting Officer. Task orders shall contain the following information:

- (1) Date of order
- (2) Contract number and task order number

- (3) A Statement of Work
- (4) Appropriation and accounting data
- (5) Performance schedule
- (6) Place of performance
- (7) The total fixed price of the task order

I. In the event of a conflict between a task order and the Contract, the Contract shall prevail.

J. The Contractor shall provide acknowledgement of receipt of the Task Order to the Contracting Officer within five calendar days.

K. The Contracting Officer shall amend task orders through the technical directive process. If an out-of-scope change is required, a new task order will be created.

H. 2 ON-RAMP CLAUSE

ON-RAMP PROVISION: The Government reserves the right to add new contractors to the IDIQ contract at any time during the contract period. This on-ramping process will be initiated to ensure continued competition, accommodate new market entrants, or address evolving requirements. New contractors will be evaluated based on the same criteria as the original awardees and must meet all current contract requirements. Additionally, the Government may consider the next ranking non-selectee from the initial source selection for on-ramping, provided they still meet the necessary qualifications and requirements. This addition ensures that qualified contractors who narrowly missed the initial selection have an opportunity to participate, maintaining a competitive and dynamic contractor pool.

H. 3 OFF-RAMP CLAUSE

OFF-RAMP PROVISION: The Government reserves the right to remove contractors from the IDIQ contract if they fail to meet performance standards, do not actively compete for task orders, or if their services are no longer required. Contractors will be given a 30-day notice and an opportunity to address any performance issues before being off-ramped. Additionally, contractors receiving unsatisfactory CPARS ratings may be subject to off ramping. The Government will review CPARS ratings periodically, and contractors with consistently low ratings will be notified and given an opportunity to improve their performance before any off ramping action is taken. This addition ensures that performance is continuously monitored and that contractors are held accountable for maintaining high standards.

H. 4 NOTICE AND APPROVAL OF RESTRICTED DESIGNS

In the performance of the Contract, the Architect-Engineer shall to the extent practicable make use of structures, machines, products, materials, construction methods, and equipment which are readily available through Government or competitive commercial channels, or through standard or proven production techniques, methods, or processes. Unless approved by the Contracting Officer, the Architect-Engineer shall not, in the performance of the work called for by the Contract, produce a design or specification such as to require the use of structures, products, materials, equipment, or processes which are known by the Architect-Engineer to be available only from a sole source. The Architect-Engineer shall provide the Contracting Officer written rationale as to why it is considered necessary to restrict any design or specification.

H. 5 EXCLUSION OF FOREIGN PRODUCTS

Designs produced shall specify only domestic end items and materials. Should it be determined the use of a foreign product is required, prior approval of the Contracting Officer must be obtained, in writing, before the foreign product is incorporated in the design.

H. 6 GOVERNMENT RIGHTS (UNLIMITED)

The Government shall have unlimited rights in all drawings, designs, specifications, notes, and other work developed in the performance of the Contract, including the rights to use same or any other Government work without additional cost to the Government; and with respect thereto the Contractor agrees to and does hereby grant to the Government royalty free license to all such data which they may cover by copyright laws. The Contractor, for a period of three (3) years after completion of the project, agrees to furnish and to provide access to the originals or copies of all such materials at the request of the Contracting Officer.

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.208-81 Deviation	Restrictions on Printing and Duplicating Deviation	Sep 2025
1852.242-72	Denied Access to NASA Facilities.	Oct 2015

NFS Clauses Incorporated by Full Text

1852.209-71 Limitation of Future Contracting. (DEC 1988)

(a) The Contracting Officer has determined that this acquisition may give rise to a potential organizational conflict of interest. Accordingly, the attention of prospective offerors is invited to FAR Subpart 9.5—Organizational Conflicts of Interest.

(b) The nature of this conflict is *FAR 9.505-2 -- Preparing Specifications or work statements..*

(c) The restrictions upon future contracting are as follows:

(1) If the Contractor, under the terms of this contract, or through the performance of tasks pursuant to this contract, is required to develop specifications or statements or work that are to be incorporated into a solicitation, the Contractor shall be ineligible to perform the work described in that solicitation as a prime of first-tier subcontractor under an ensuing NASA contract. This restriction shall remain in effect for a reasonable time, as agreed to by the Contracting Officer and the Contractor, sufficient to avoid unfair competitive advantage or potential bias (this time shall in no case be less than the duration of the initial production contract). NASA shall not unilaterally require the Contractor to prepare such specifications or statements of work under this contract.

(2) To the extent that the work under this contract requires access to proprietary, business confidential, or financial data of other companies, and as long as these data remain proprietary or confidential, the Contractor shall protect these data from unauthorized use and disclosure and agrees not to use them to compete with those other companies.

(End of clause)

1852.225-70 Export Licenses (DEC 2025) (Deviation)

(a) The contractor shall comply with all U.S. export control laws and regulations, including the International Traffic in Arms Regulations (ITAR), 22 CFR Parts 120 through 130, and the Export Administration Regulations (EAR), 15 CFR Parts 730 through 799, in the performance of this contract. In the absence of available license exemptions/exceptions, the contractor shall be responsible for obtaining the appropriate licenses or other approvals, if required, for exports of hardware, technical data, and software, or for the provision of technical assistance.

(b) The contractor shall be responsible for obtaining export licenses, if required, before utilizing foreign persons in the performance of this contract, including instances where the work is to be performed on-site at a *NASA installation*, where the foreign person will have access to export-controlled technical data or software.

(c) The contractor shall be responsible for all regulatory record keeping requirements associated with the use of licenses and license exemptions/exceptions.

(d) The contractor shall be responsible for ensuring that the provisions of this clause apply to its subcontractors.

(End of clause)

1852.235-71 Essential Personnel and Facilities (SEP 2025) (Deviation)

(a) The personnel and/or facilities listed below (or specified in the contract Schedule) are considered essential to the work being performed under this contract. Before removing, replacing, or diverting any of the listed or specified personnel or facilities, the Contractor must—

- (1) Notify the Contracting Officer reasonably in advance; and
- (2) Submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract.

(b) The Contractor must make no diversion without the Contracting Officer's written consent; provided, that the Contracting Officer may ratify in writing the proposed change, and that ratification must constitute the Contracting Officer's consent required by this clause.

(c) The Contractor must obtain the contracting officer's prior written approval anytime the Contractor plans to continue the research work during a continuous period in excess of 3 months without the participation of an approved principal investigator or project leader.

(d) The list of personnel and/or facilities (shown below or as specified in the contract Schedule) may, with the consent of the contracting parties, be amended from time to time during the course of the contract to add or delete personnel and/or facilities.

List here the personnel and/or facilities considered essential, unless they are specified in the contract Schedule.

(End of clause)

KSC Clauses Incorporated by Full Text**KSC 52.223-121 REPORTING OF INCIDENTS INVOLVING WORKPLACE VIOLENCE (OCT 2023)**

The contractor shall conduct training on and develop procedures for recognizing, managing and responding to incidents and threats of workplace violence as defined in NASA Policy Directive (NPD) 1600.3 Policy on Prevention of and Response to Workplace Violence and Kennedy NASA Procedural Requirement (KNPR) 1620.9 Kennedy Space Center Workplace Violence Prevention and Response Program. Contractors shall also promptly report all incidents involving workplace violence to the Protective Services Office. If the NASA Threat Assessment Team (TAT) Chair and Co-Chair determine it is appropriate for the contractor to participate in a TAT meeting, the contractor shall comply with the TAT request. The contractor is also responsible for reporting disposition of the incident reported to the NASA TAT.

This requirement shall flow down to the subcontractors, however the subcontractors shall report up through the prime contractor.

(End of clause)

KSC 52.242-90 CONTROLS APPLICABLE TO CONTRACTOR'S ACTIVITIES (OCT 2023)

The Contractor shall comply with the publications listed and those checked as applicable below, and subsequent revision thereof, that the Contracting Officer has indicated as being incorporated in this contract by reference. These publications prescribe regulatory and procedural criteria which are applicable to this contract. The contractor shall promptly take corrective action upon notice of noncompliance from the Contracting Officer or his/her authorized representative(s) with any provision of the publications listed below.

The Contractor shall comply with the following publication, which can be found at <https://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPR&c=1600&s=4A> :

NPR 1600.4A, Identity and Credential Management

The Contractor shall comply with the following publications and those publications checked as applicable below. These documents can be found at <https://public.ksc.nasa.gov/ppd/documents>

KNPR 8715.2, Comprehensive Emergency Management Plan

KNPR 1600.1, KSC Security Procedural Requirements

KNPR 8500.1, KSC Environmental Requirements

KNPR 8715.3, KSC Safety Procedural Requirements

KNPD 1600.3, Use of Alcoholic Beverages on Kennedy Space Center (KSC) Property

Check if applicable:

XKNPD 1810.1 KSC Occupational Medicine Program

XKNPR 1860.1 KSC Ionizing Radiation Protection Program

XKNPR 1860.2 KSC Nonionizing Radiation Protection Program

XKNPR 1820.3 KSC Hearing Loss Prevention Program

XKNPR 1820.4 KSC Respiratory Protection Program

XKNPR 1840.19 KSC Industrial Hygiene Programs

X45SWI40-201 45th Space Wing Instruction 40-201 Radiation Protection Program

KNPR 1840.1 KSC Hazard Communication Program

KNPR 1870.1 KSC Sanitation and Public Health Program

XKNPR 2570.1 KSC Radio Frequency Spectrum Management Procedural Requirements

KNPR 4000.1 Supply and Equipment Program Manual

KNPR 6000.1 KSC Transportation Support System Manual

XKNPR 8715.7 KSC Construction Contractor Safety and Health Practices Procedural Requirements

KNPR 8830.1 Facility Asset Management Procedural Requirements

(End of clause)

**KSC 52.242-93 CONTRACTOR WORKFORCE REPORT - ONSITE CONTRACTORS AND SUBCONTRACTORS.
(MAR 2022)**

The Contractor shall submit, on a quarterly basis, a manpower report delineating information about its workforce, including the same level of information about its subcontractor workforce performing on the contract (if applicable). The report shall include: the contract number, the contractor's total on-site workforce, total on-site union represented employees by bargaining unit, total on-site non-union represented employees, total off-site workforce, and total workforce in a full-time teleworking status performing on the contract. The Contractor shall provide this information no later than 10 days after the close of each reporting period, which ends March 31st, June 30th, September 30th, and December 31st. The report shall be submitted to the Contracting Officer with a copy to the Industrial Labor Relations Office at KSC-DL-OP-IndustrialRelations@mail.nasa.gov.

In the event of an Emergency situation at KSC where access to the Center is restricted for a period that exceeds 45 days (such as a pandemic or similar emergency), the Contracting Officer may require the Contractor to submit the manpower report on a monthly basis instead of quarterly, including the total contractor /subcontractor workforce under any government directed reporting categories. The Contractor shall provide this information no later than 10 days after the end of each month. The Contracting Officer will notify the Contractor when the Emergency situation ends, and the reporting frequency shall return to quarterly.

(End of clause)

Section I - Contract Clauses

I. 1 KENNEDY SPACE CENTER BADGING ISSUANCE AND IDENTIFY VERIFICATION PROCESS

(Applicable to KSC issued task orders only- Other NASA location may implement a similar clause)

Reference FAR Clause 52.204-9, Personal Identity Verification of Contractor Personnel, incorporated by reference in Section I of this contract. See the KSC Protective Services Office (PSO) website (<https://ps0.ksc.nasa.gov/>), NASA Procedural Requirement (NPR) 1600.3,

Personnel Security, and NPR 1600.4A, Identity and Credential Management, regarding the process contractor personnel must follow to obtain access to NASA KSC facilities, property, personnel, and information technology resources.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.202-1	Definitions.	Jun 2020
52.203-3	Gratuities.	Apr 1984
52.203-5	Covenant Against Contingent Fees.	May 2014
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020
52.203-7	Anti-Kickback Procedures.	Jun 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021
52.203-14	Display of Hotline Poster(s).	Nov 2021
52.203-16	Preventing Personal Conflicts of Interest.	Jun 2020
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011
52.204-10 Deviation	Reporting Executive Compensation and First-Tier Subcontract Awards Deviation	Nov 2025
52.204-13 Deviation	System for Award Management - Maintenance Deviation	Nov 2025
52.204-15 Deviation	Service Contract Reporting Requirements for Indefinite-Delivery Contracts Deviation	Nov 2025
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014
52.209-6 Deviation	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded Deviation	Nov 2025
52.209-9 Deviation	Updates of Publicly Available Information Regarding Responsibility Matters Deviation	Nov 2025
52.209-10 Deviation	Prohibition on Contracting with Inverted Domestic Corporations Deviation	Nov 2025
52.210-1 Deviation	Market Research Deviation	Nov 2025
52.215-2 Deviation	Audit and Records - Negotiation Deviation	Nov 2025
52.215-8 Deviation	Order of Precedence - Uniform Contract Format Deviation	Nov 2025
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011
52.215-12 Deviation	Subcontractor Certified Cost or Pricing Data Deviation	Nov 2025
52.215-15 Deviation	Pension Adjustments and Asset Reversions Deviation	Nov 2025
52.215-17	Waiver of Facilities Capital Cost of Money.	Oct 1997
52.215-18 Deviation	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions Deviation	Nov 2025
52.215-19 Deviation	Notification of Ownership Changes Deviation	Nov 2025
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications.	Nov 2021
52.215-21 Alternate III	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. Alternate III	Oct 1997
52.215-21 Alternate IV	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. Alternate IV	Oct 2010
52.215-23 Deviation	Limitations on Pass-Through Charges Deviation	Nov 2025
52.219-6 Deviation	Notice of Total Small Business Set-Aside Deviation	Nov 2025
52.219-7	Notice of Partial Small Business Set-Aside.	Nov 2020
52.219-8 Deviation	Utilization of Small Business Concerns Deviation	Nov 2025
52.219-9 Deviation	Small Business Subcontracting Plan Deviation	Nov 2025
52.219-9 Alternate II Deviation	Small Business Subcontracting Plan Alternate II Deviation	Nov 2025
52.219-14 Deviation	Limitations of Subcontracting Deviation	Nov 2025

52.219-16 Deviation	Liquidated Damages - Subcontracting Plan Deviation	Nov 2025
52.219-28 Deviation	Postaward Small Business Program Representation Deviation	Nov 2025
52.222-3 Deviation	Convict Labor Deviation	Nov 2025
52.222-35 Deviation	Equal Opportunity for Veterans Deviation	Nov 2025
52.222-36 Deviation	Equal Opportunity for Workers with Disabilities Deviation	Nov 2025
52.222-37 Deviation	Employment Reports on Veterans Deviation	Nov 2025
52.222-40 Deviation	Notification of Employee Rights Under the National Labor Relations Act Deviation	Nov 2025
52.222-50 Deviation	Combatting Trafficking in Persons Deviation	Nov 2025
52.222-54 Deviation	Employment Eligibility Verification Deviation	Nov 2025
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024
52.226-7	Drug-Free Workplace.	May 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-1	Authorization and Consent.	Jun 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020
52.227-11	Patent Rights-Ownership by the Contractor.	May 2014
52.227-11 Alternate IV	Patent Rights-Ownership by the Contractor. Alternate IV	Jun 1989
52.227-17	Rights in Data-Special Works.	Dec 2007
52.227-21	Technical Data Declaration, Revision, and Withholding of Payment-Major Systems.	May 2014
52.228-5	Insurance-Work on a Government Installation.	Jan 1997
52.229-3 Deviation	Federal, State, and Local Taxes Deviation	Jul 2025
52.229-4 Deviation	Federal, State, and Local Taxes (State and Local Adjustments) Deviation	Jul 2025
52.230-2 Deviation	Cost Accounting Standards Deviation	Nov 2025
52.230-3 Deviation	Disclosure and Consistency of Cost Accounting Practices Deviation	Nov 2025
52.230-6 Deviation	Administration of Cost Accounting Standards Deviation	Nov 2025
52.232-10	Payments under Fixed-Price Architect-Engineer Contracts.	Apr 2010
52.232-17	Interest.	May 2014
52.232-23	Assignment of Claims.	May 2014
52.232-25	Prompt Payment.	Jan 2017
52.232-26	Prompt Payment for Fixed-Price Architect-Engineer Contracts.	Jan 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-1 Deviation	Disputes Deviation	Nov 2025
52.233-1 Alternate I Deviation	Disputes Alternate I Deviation	Nov 2025
52.233-3 Deviation	Protest after Award Deviation	Nov 2025
52.236-13 Deviation	Accident Prevention Deviation	Jul 2025
52.236-13 Alternate I	Accident Prevention. Alternate I	Nov 1991
52.236-22 Deviation	Design with Funding Limitations Deviation	Jul 2025
52.236-24	Work Oversight in Architect-Engineer Contracts.	Apr 1984
52.236-25	Requirements for Registration of Designers.	Jun 2003
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984
52.242-5	Payments to Small Business Subcontractors.	Jan 2017
52.242-13	Bankruptcy.	Jul 1995
52.243-1 Deviation	Changes - Fixed Price Deviation	Jun 2025
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services).	Aug 1998
52.245-1	Government Property.	Sep 2021
52.245-1 Alternate I	Government Property. Alternate I	Apr 2012
52.245-9	Use and Charges.	Apr 2012
52.248-2	Value Engineering-Architect-Engineer.	Mar 1990
52.249-7	Termination (Fixed-Price Architect-Engineer).	Apr 1984
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984
52.253-1 Deviation	Computer Generated Forms Deviation	Nov 2025

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.203-70 Deviation	Display of Inspector General Hotlines Posters. Deviation	Sep 2025
1852.203-71 Deviation	Requirement to Inform Employees of Whistleblower Rights. Deviation	Sep 2025
1852.215-84	Ombudsman.	Nov 2023
1852.219-75	Individual Subcontracting Reports.	Apr 2015
1852.228-75 Deviation	Minimum Insurance Coverage Deviation	Sep 2025
1852.237-70 Deviation	Emergency Evacuation Procedures Deviation	Dec 2025
1852.237-72 Deviation	Access to Sensitive Information Deviation	Dec 2025
1852.237-73 Deviation	Release of Sensitive Information Deviation	Dec 2025

FAR Clauses Incorporated by Full Text

52.216-18 Ordering. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *the time of contract award through five years after Contract award, with an option period up to six months. All task orders are subject to the terms and conditions of this Contract. In the event of conflict between a Task Order and this Contract, the Contract will prevail. The Task Order is considered issued when the Government deposits the Order in the mail. Orders may be issued orally, facsimile, or be electronic commerce methods only if authorized in the Schedule..*

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$1,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$1,000,000;

(2) Any order for a combination of items in excess of \$5,000,000; or

(3) A series of orders from the same ordering office within 365 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within *five* days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity (NOV 2025) (Deviation)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after *the performance period cited in the task order or subsequent task order modification*.

(End of clause)

52.217-8 Option to Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within *30 days*.

(End of clause)

52.219-13 Notice of Set-Aside of Orders. (MAR 2020)

(a) The Contracting Officer may set aside orders for the small business concerns identified in 19.000(a)(3).

(b) The Contracting Officer will give notice of the order or orders, if any, to be set aside for small business concerns identified in 19.000(a)(3) and the applicable small business program. This notice, and its restrictions, will apply only to the specific orders that have been set aside for any of the small business concerns identified in 19.000(a)(3).

(End of clause)

52.223-23 Sustainable Products (NOV 2025) (Deviation)

(a) *Definitions.* As used in this clause—

Sustainable product means—

(1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products>, <https://www.energystar.gov/products?s=mega>, and <https://www.energy.gov/femp/low-standby-power-product-list>).

(3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (<https://www.biopreferred.gov/>).

(4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables>).

(b) Requirements. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are—

(1) Delivered to the Government;

(2) Furnished for use by the Government;

(3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

52.233-4 Applicable Law for Breach of Contract Claim (NOV 2025) (Deviation)

United States law will apply to resolve any claim of breach of this contract.

(End of clause)

52.243-1 Changes-Fixed-Price (NOV 2025) Alternate III (Deviation)

If the requirement is for architect-engineer or other professional services, substitute the following paragraph (a) for paragraph (a) of the basic clause and add the following paragraph (f):

(a)(1) At any time, the Contracting Officer may issue a written order to make changes within the scope of this contract in the services to be performed.

(2) If there are any sureties, the Contracting Officer does not need to notify them of a written order.

(f) No services for which an additional cost or fee will be charged by the Contractor shall be furnished without the prior written authorization of the Contracting Officer.

52.244-6 Subcontracts for Commercial Products and Commercial Services. (NOV 2025) (Deviation)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and nondevelopmental item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract has the meaning at FAR 44.401

(b) *Requirements.*

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number	Title	Date
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017

52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.219-8*	Utilization of Small Business Concerns	JAN 2025
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-50 with Alt I	Combating Trafficking in Persons, with its Alternate I	MAR 2015

52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements	MAY 2014
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements	MAY 2014
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.224-3	Privacy Training	JAN 2017
52.224-3 with Alt I	Privacy Training, with Alternate I	JAN 2017
52.225-26	Contractors Performing Private Security Functions Outside the United States	OCT 2016
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023

52.240-91	Security Prohibitions and Exclusions	NOV 2025
52.240-91 with Alt I	Security Prohibitions and Exclusions, with its Alternate I	NOV 2025
52.240-92	Security Requirements	NOV 2025
52.240-92 with Alt II	Security Requirements, with its Alternate II	NOV 2025
52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels	NOV 2021

* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(c) *Subcontracts*. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR site: <http://www.acquisition.gov/far/index.html>

NFS site: <http://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of clause)

52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any *NASA Federal Acquisition Regulation Supplement* (48 CFR 18) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

NFS Clauses Incorporated by Full Text

1852.216-80 Task Ordering Procedure (DEC 2025) (Deviation)

(a) Only the contracting officer may issue task orders to the contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The contractor may incur costs under this contract in performance of task orders and task order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the contracting officer.

(b) Prior to issuing a task order, the contracting officer shall provide the contractor with the following data:

(1) A functional description of the work identifying the objectives or results desired from the contemplated task order.

(2) Proposed performance standards to be used as criteria for determining whether the work requirements have been met.

(3) A request for a task plan from the contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the contractor's proposal.

(c) Within (*exact date to be specified in the task order solicitation*) 15-30 calendar days after receipt of the contracting officer's request, the contractor shall submit a task plan conforming to the request.

(d) After review and any necessary discussions, the contracting officer may issue a task order to the contractor containing, as a minimum, the following:

(1) Date of the order.

(2) Contract number and order number.

(3) Functional description of the work identifying the objectives or results desired from the task order, including special instructions or other information necessary for performance of the task.

(4) Performance standards, and where appropriate, quality assurance standards.

(5) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.

(6) Any other resources (travel, materials, equipment, facilities, etc.) authorized.

(7) Delivery/performance schedule including start and end dates.

(8) If contract funding is by individual task order, accounting and appropriation data.

- (e) The contractor shall provide acknowledgment of receipt to the contracting officer within *five* calendar days after receipt of the task order.
 - (f) If time constraints do not permit issuance of a fully defined task order in accordance with the procedures described in paragraphs (a) through (d), a task order which includes a ceiling price may be issued.
 - (g) The contracting officer may amend tasks in the same manner in which they were issued.
 - (h) In the event of a conflict between the requirements of the task order and the contractor's approved task plan, the task order shall prevail.
- (End of clause)

1852.216-80 Task Ordering Procedure. (APR 2018) Alternate II

(i) Contractor shall submit progress reports, as required. When required, the reports shall contain, at a minimum, the following information:

- (1) Contract number, task order number, and date of the order.
- (2) Price and billed amounts to date for each task order.
- (3) Significant issues/problems associated with the task order.
- (4) Status of all task orders issued under the contract.
- (5) Invoice number.

1852.219-77 NASA Small Business Supplier Development Program (FEB 2026) (Deviation)

(a) NASA prime contractors are encouraged to participate as mentors in the NASA Small Business Supplier Development Program (the Program) for the purpose of providing developmental assistance to eligible protégés to enhance their capabilities and increase their participation in NASA, other Government, and in commercial contracts and subcontracts.

(b) The Program consists of—

- (1) Mentors, which are large business prime contractors or research institutions performing a NASA contract with an individual small business subcontracting plan.
- (2) Protégés, which qualify as:
 - (i) A small business concern;
 - (ii) A Historically Black College or University, as defined in FAR 52.226-2;
 - (iii) A Minority-serving institution, as defined in 47 U.S.C. 1306(a)(10); or

(iv) An entity participating in the AbilityOne Program.

(3) Mentor-protégé agreements (MPA) approved by the Contracting Officer and the NASA Office of Small Business Programs (OSBP), and incorporated into the contract.

(c) Incentives for mentor participation in the Program include credit towards small business subcontracting plan goals for costs incurred and, when applicable, award fee considerations in accordance with NFS 1816.402-474.

(d) Learn more about the Program here - <https://www.nasa.gov/osbp/mentor-protegeprogram/>

(End of clause)

1852.236-73 Hurricane Plan. (AUG 2025) (Deviation)

In the event of a hurricane warning, the Contractor must –

(a) Inspect the area and place all materials possible in a protected location;

(b) Tie down, or identify and store, all outside equipment and materials;

(c) Clear all surrounding areas and roofs of buildings, or tie down loose material, equipment, debris, and any other objects that could otherwise be blown away or blown against existing buildings; and

(d) Ensure that temporary erosion controls are adequate.

(End of clause)

Section J - List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	URL	Line Item
01	SERA Attachment 1 - PPQ	Past Performance Questionnaire	Past Performance Questionnaire	10 FEB 2026		
02	SERA Attachment 2- IDIQ Question Form	IDIQ Question Form	IDIQ Question Form	10 FEB 2026		
03	SERA Attachment 3 - SF330 - Architect-Engineer Qualifications	SF 330 Architect Engineer Qualifications	SF 330 Architect Engineer Qualifications	10 FEB 2026		
04	Attachment 4 EFSS-Box- Offeror- Proposal- Submission- Instructions	EFSS Box Offeror Proposal Submission Instructions	EFSS Box Offeror Proposal Submission Instructions	10 FEB 2026		

Section K - Representations, Certification, and other Statements of Offerors

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017
52.209-2 Deviation	Prohibition on Contracting with Inverted Domestic Corporations - Representation Deviation	Nov 2025
52.209-11 Deviation	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law Deviation	Nov 2025
52.236-23 Deviation	Responsibility of Architect-Engineer Contractor Deviation	Jul 2025

FAR Clauses Incorporated by Full Text

52.209-5 Certification Regarding Responsibility Matters (NOV 2025) (Deviation)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are _ are not _ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have _ have not _, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are _ are not _ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have _ have not _, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has

failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has _ has not _, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters (NOV 2025) (Deviation)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror _ has _ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked ""has"" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-12 Certification Regarding Tax Matters. (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has _ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not _ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not _, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements - Certification (NOV 2025) (Deviation)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

___ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

___ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations (NOV 2025) (Deviation)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern

that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 541330.

(2) The small business size standard is \$25.5 million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations. (1) The offeror represents as part of its offer that—

(i) it _ is, _ is not a small business concern; or

(ii) It _ is, _ is not a small business joint venture that complies with the requirements of 13 CFR 121.103 (h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it _ is, _ is not a women-owned small disadvantage business concern.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it _ is, _ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it _ is, _ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it _ is, _ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it _ is, _ is not a

HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

- (1) Punished by imposition of fine, imprisonment, or both;
- (2) Subject to administrative remedies, including suspension and debarment; and
- (3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.227-15 Representation of Limited Rights Data and Restricted Computer Software. (DEC 2007)

(a) This solicitation sets forth the Government's known delivery requirements for data (as defined in the clause at [52.227-14](#), Rights in Data-General). Any resulting contract may also provide the Government the option to order additional data under the Additional Data Requirements clause at [52.227-16](#), if included in the contract. Any data delivered under the resulting contract will be subject to the Rights in Data-General clause at [52.227-14](#) included in this contract. Under the latter clause, a Contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and deliver form, fit, and function data instead. The latter clause also may be used with its Alternates II and/or III to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate. In addition, use of Alternate V with this latter clause provides the Government the right to inspect such data at the Contractor's facility.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states [*offeror check appropriate block*]-

☐ None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

☐ Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of the data should a contract be awarded to the offeror.

(End of provision)

52.230-1 Cost Accounting Standards Notices and Certification (NOV 2025) (Deviation)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement-Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205 (b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ Certificate of Concurrent Submission of Disclosure Statement. The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained

from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or
Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) _ Certificate of Previously Submitted Disclosure Statement. The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or
Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) _ Certificate of Monetary Exemption. The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) _ Certificate of Interim Exemption. The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

_ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes

☐ No

(End of provision)

52.230-7 Proposal Disclosure-Cost Accounting Practice Changes. (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

- (1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and
- (2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

NFS Clauses Incorporated by Full Text

1852.225-72 Restriction on funding Activity with China – Representation (DEC 2025) (Deviation)

(a) Definition - “China” or “Chinese-owned” means the People’s Republic of China, any company owned by the People’s Republic of China, or any company incorporated under the laws of the People’s Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 536, restrict NASA from contracting to participate, collaborate, or coordinate bilaterally in any way with China or a Chinese-owned company with funds appropriated on or after April 25, 2011. Contracts for commercial and non-developmental items are excepted from the prohibition as they constitute purchase of goods or services that would not involve

participation, collaboration, or coordination between the parties.

(c) Representation. By submission of its offer, the offeror represents that the offeror is not China or a Chinese-owned company.

(End of provision)

Section L - Instrs., Conds., and Notices to Offerors

L. 1 COMMUNICATIONS REGARDING SOLICITATION

(1) Questions or comments regarding this solicitation must be submitted in writing via email using the Microsoft Excel format included in Section J, Attachment 2 and be directed to the following Government POC's:

National Aeronautics Space Administration

Office of Procurement

Kennedy Space Center, FL 32988

Lacorsha.d.noel@nasa.gov

Stephen.e.crooks@nasa.gov

Oral questions will not be answered due to the possibility of misunderstanding or misinterpretation.

Questions regarding this solicitation shall be submitted to the Contracting Officers stated above via email no later than 10 calendar days prior to the RFP closing date.

(2) Questions or comments should be submitted in accordance with the above to allow analysis and dissemination of responses. Late questions or comments are not guaranteed a response prior to the proposal due date. The Contracting Officer will issue a written amendment to this solicitation to answer questions. Offerors are ENCOURAGED to submit questions prior to the last date for questions.

L. 2 ELECTRONIC SUBMISSION OF OFFERS VIA EFSS BOX

(a) The offeror must utilize the NASA's Enterprise File Sharing and Sync Box (EFSS Box), a FedRAMP Moderate certified platform, for their electronic submission. Electronic submissions shall not contain hidden formulas, tables, be locked, be protected, or contain links to data not included in the electronic copy. All electronic submissions should be searchable and should not contain scanned documents, except those documents that must be provided in their native format. The offeror shall ensure documents are free from viruses and malware, as documents determined by NASA to contain a virus or malware will not be opened or evaluated.

(b) Prior to the electronic submission, offerors interested in responding to this solicitation **should notify the contracting officers at least 48 hours prior to the intended submission date/time of their intent to provide a submission at the following email addresses:**

Lacorsha.d.noel@nasa.gov and Stephen.e.crooks@nasa.gov

(c) **The offeror shall submit all files on or before the exact time specified in the solicitation to:**
<https://nasagov.box.com/s/dmn6rpb40txoi9xjo3xyh5nygy9r4by>.

The offeror shall follow instructions regarding proposal submission found at <https://www.hq.nasa.gov/office/procurement/other/EFSS-Box-Offeror-Proposal-Submission-Instructions.pdf>.

(d) Electronic file names shall be limited to letters, numbers, and single spaces, with the exception of the period that is required before the file extension (e.g., .pdf), in order to successfully upload and download files from the EFSS Box system. The offeror shall not use special characters "/" or "" in file names. The offeror shall clearly label the contents of the file and include the name of the offeror in the file name. Examples of acceptable file names are as follows (not specific to this solicitation)::

Offeror Submissions:

Offeror name - solicitation number - Technical Capability Volume.pdf

Offeror name - solicitation number - Price Volume.xlsx

Individual files cannot exceed 150GB per file. Unless specifically authorized by the solicitation instructions, alternate proposal submissions shall not be submitted.

(e) Immediately after all files have been submitted in their entirety, the offeror shall notify the contracting officers at the following email addresses: Lacorsha.d.noel@nasa.gov and Stephen.e.crooks@nasa.gov with a listing of all documents that were submitted via EFSS Box.. If any problems are experienced with the EFSS Box system (e.g., login, file transfer), please contact the contracting officer via e-mail as soon as possible.

(f) The offeror is responsible for ensuring its submission reaches the Government office designated in the solicitation by the date and time specified in the solicitation. The Government is not responsible for any failure attributable to the transmission or receipt of documents submitted using electronic means, including the missing of any submission requirements and established deadlines. Please note that uploading documents via EFSS Box and the transmission of the files from the offeror to the Government may not be instantaneous. **To ensure timely delivery, the offeror is encouraged to submit its proposal at least 24 hours prior to the due date specified in the solicitation.** The electronic submission of the proposal shall contain all information required by the solicitation to be determined responsive.

Late proposals will be reviewed in accordance with FAR 15.107(b).

L. 3 SUBMISSION PAGE LIMITATIONS

A-E firms responding to this solicitation must submit a completed SF 330 package. Unique Entity Identifier (UEI), CAGE Code, and TIN numbers must be included in Block 30 of the SF 330. The submission, including the SF 330 Parts I and II, must not exceed 60 pages and must include any information the A-E firm feels may be of benefit to it in the evaluation and selection process. Any pages exceeding the maximum page limitation will not be evaluated. The following are excluded from the 60-page limitation: submission transmittal cover pages, tab pages, tables of contents, signed amendments (if applicable), licensure/accreditation copies, copies of Section I from submitted PPQs, and completed CPARS evaluations. A tab page is defined as a blank sheet used to separate the submission pages and may include a section heading. Any additional information provided on a tab page, other than section heading, will result in the tab page being counted against the 60-page limitation. A page is defined as one side of an 8-1/2" x 11" sheet of paper, with at least a one-inch margin on all sides, using Arial font with a type-size of 10-point font. The one-inch margin and 10-point font limits are applicable to pages formatted by the A-E firm. The SF 330 form has its own instructions and is exempt from the above margin and character size limits.

The submission may be submitted on single- or double-sided sheets but must not exceed the 60-page limitation. Each 8-1/2" x 11" sheet will be considered one page when printed on one side and considered two pages when printed on both sides. Printed pages and illustrations must be legible and no larger than 11" x 17" foldouts, as appropriate for the subject matter. The 11" x 17" paper must be for the exclusive presentation of tables, figures, or illustrations. Each 11" x 17" page will be considered two pages when printed on one side and considered four pages when printed on both sides.

L. 4 SUBMISSION REQUIREMENTS

Firms must submit a completed SF 330, Architect-Engineering Qualifications, Parts I and II and include specific information addressing each of the five selection criteria described in this solicitation. Firms will be evaluated to determine the most highly qualified in relation to the selection criteria. **Failure to provide the**

requested data or to comply with the instructions in this notice will result in an evaluation that a firm is non-responsive.

The following factors will be used in the evaluation of offerors to this solicitation. NASA will consider the immediate past five years as the period for evaluation.

The offeror shall provide their submissions via NASA's Enterprise File Sharing and Sync Box (EFSS Box) system, in accordance with Attachment 4. **Ensure that submissions are searchable Portable Document Format (PDF) and must be delivered on or before May 27, 2026.**

The offeror shall submit responses to the solicitation to: <https://nasagov.box.com/s/dmn6rpb40txoi9xjo3xyh5nygy9r4by>.

Note: All submissions shall use the fillable version of the SF 330 (Rev. 7/2021) downloaded from the GSA Forms Library (See attach 4) (https://www.gsa.gov/reference/forms?search_keyword=Sf330). Individual pages of the Sections can also be downloaded from this site.

1) To ensure that all firms are evaluated equally, any submissions that have altered the SF 330 Sections A-H in any way will be considered non-responsive and will not be considered for selection. The prohibited alterations include, but not limited to:

- Insertion of photos, tables, or graphics in sections A-G
- Modifying, deleting, or altering any block sizes
- Altering the font or font size. Note: The form natively uses Arial font with 10-point type with a set cell size
- Altering paragraph line spacing
- Modifying or deleting page layouts or using an in-house form
- Altering the margins of the form

2) Any additional information that cannot fit within the SF 330 Sections A-G can be included in section H.

- At least one page in section H must include the standard form with blocks 31-33 filled in
- The firm may choose to use multiple pages of the section H form; however, the A-E shall not alter the form in any way as described above
- The firm may choose to use supplemental Section H pages, (edited in Microsoft Word or similar) in which photos, tables may be included. The format of the pages shall include:
 - Font no smaller than Arial 10
 - Margins set at one inch on all sides
 - All section H pages, including supplemental pages count towards the 60-page limit

Note: Any supplemental information provided in Section H regarding Specialized Experience that is not a part of Projects 1-10 will not be evaluated under Specialized Experience.

Firms are cautioned to ensure that the cut/paste of data into the form must use the native settings.

Only submissions via NASA's Enterprise File Sharing and Sync Box (EFSS Box) system will be accepted.

L. 5 ARCHITECT-ENGINEER QUALIFICATION REQUIREMENTS

Firms must submit a completed SF 330, Architect-Engineering Qualifications, Parts I and II and include specific information addressing each of the five selection criteria described in this solicitation.

1. Specialized experience and technical competence in the types of work required. Provide no more than 10 projects in Section F of the SF 330. Firms must include the customer's/owner's point-of-contact (POC), project title and location (include a customer's identification number, if applicable, such as delivery task order number /s, contract number) in Section F of each SF 330 for each project. All projects must be ongoing or completed within five years from the date of this solicitation. For submittal purposes, a single project may be considered to include multiple phases of a single effort, even under separate task orders, to include planning and feasibility studies, permitting, preliminary engineering reports, design, engineering services during construction, activation and commissioning. General engineering contracts, IDIQ contracts, basic agreements, and basic ordering agreements are not considered "projects." One task order under an IDIQ/general engineering contract will be considered one "project."

2. Professional qualifications necessary for satisfactory performance of required services.

Provide qualifications only for those key personnel who will actually perform the major duties for the A-E Scope of Services in this solicitation.

Provide resumes for the following personnel (at a minimum).

- Two (2) Civil Engineer PE's with demonstrated experience in design and ESDC of large and complex civil systems and permitting. The proposal shall indicate Professional Engineer (PE) licensure coverage in FL, TX, AL, LA, and MS or how permitting actions in each of those states will be accomplished.

- One (1) Structural Engineer PE with demonstrated experience in design and ESDC of large and complex structural systems

- Two (2) Mechanical Engineers PE's with demonstrated experience in design and ESDC of large and complex mechanical systems

- One (1) Electrical Engineer PE with demonstrated design and ESDC experience of large and complex electrical systems.

- One (1) Control Systems Electrical Engineer PE with demonstrated experience with control systems (HVAC, lighting).

- One (1) Fire Protection PE with demonstrated design and ESDC experience in fire alarm / detection, fire suppression, and/or life safety designs

- One (1) Architect American Institute of Architects (AIA) with demonstrated design and ESDC experience of architectural systems.

- One (1) Contract Manager with demonstrated experience managing federal contracts and multiple multidiscipline task orders

- One (1) Project Manager with demonstrated experience coordinating multidiscipline design efforts for large and complex projects
- One (1) Quality Control Manager with demonstrated experience providing quality control (QC) on multidiscipline design efforts for large and complex projects
- One (1) Cost Estimator (certified or PE) with demonstrated experience providing accurate cost estimates for large, complex, multidiscipline projects. Moderate emphasis is placed on a firm's senior estimator with accreditation through International Cost Estimating and Analysis Association, American Association of Cost Engineers, Society of Cost Estimating and Analysis, or American Society of Professional Estimators. A Professional Engineer with significant cost estimating experience may be submitted but will not be considered certified.
- One (1) Scheduler (certified or PE) with demonstrated experience providing accurate and detailed construction schedule for large, complex, multidiscipline projects. Moderate emphasis is placed on a firm's senior scheduler with accreditation through the Project Management Institute, American Association of Cost Engineers, or APMG International.
- One (1) Designer / Drafter with demonstrated experience in BIM / 3D software for large, complex, multidiscipline projects.

The A-E firm must provide proof of licenses or professional accreditations for key personnel as part of the submission. The A-E firms must include civil engineers registered in the states of Florida, Alabama, Texas, Louisiana, or Mississippi or how permitting actions in each of those states will be accomplished in order to meet the intent for state-regulated permits. Other listed professionals must also be registered but may be from any state. The proof of licenses and professional accreditation must be provided as follows: professional license number and the state where licensed must be provided in the SF 330 Section E, Box 17; other professional accreditation must be provided in the SF 330 Section E, Box 18. Identify which of the key personnel are LEED certified.

3. Past Performance.

Firms must provide the Past Performance Questionnaires (PPQs) (Attachment 1) to each past performance customer contact identified in Section F of the SF 330. Firms must request customers submit their completed questionnaires via e-mail to arrive no later than 2:00 p.m. Eastern Time (ET) on **May 27, 2026**, to the address listed below.

Name: **LaCorsha Noel and Stephen Crooks**

Email Address: Lacorsha.d.noel@nasa.gov / Stephen.e.crooks@nasa.gov

A sample past performance transmittal letter is provided as part of Attachment 1. Questionnaires must be returned directly from the customer contact to the Contracting Officer listed above. PPQs will not be accepted directly from the firm.

Copies of Section 1 of the PPQs the firm sends to each customer contact must be submitted with the firm's SF 330. If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available for a project identified in Section F of the SF 330, it must be submitted along with the completed SF 330 package. NOTE: The CPARS evaluation is not a substitute for a completed PPQ.

4. Capacity to accomplish multiple task orders.

Provide an organizational chart for the key personnel in the SF 330, Part I, Section D. The organizational chart should include at a minimum each of the key personnel listed under Professional Qualifications. Provide a table indicating for each of the projects submitted under "Specialized Experience" which of the key personnel submitted under professional qualifications were a part of the design team for that project to demonstrate a history of the proposed team members (and firms) working together.

5. Location in the general geographical area and knowledge/experience at the following NASA Center locations.

Indicate the key personnel's knowledge and experience working at each of the following Centers, other NASA facilities or other federally regulated sites such as DoD facilities: Kennedy Space Center (KSC), including Cape Canaveral Space Force Station (CCSFS); Stennis Space Center (SSC); Johnson Space Center (JSC); Marshall Space Flight Center (MSFC), including Michoud Assembly Facility (MAF), and any remote sites associated with these locations.

NOTE (regarding the following requirements): Advanced Pricing Rate Proposals, Small Business Subcontracting Plans, and Safety and Occupational Health Plans should NOT be submitted with original responses until requested by the Contracting Officer.

L.6 ADVANCED PRICING RATE AGREEMENTS (APRAs)

The most highly qualified firms to perform the work must submit APRA proposals. The APRA proposals must include, at a minimum, a description of direct labor categories, direct labor rates, annual escalation of rates, G&A rates, overhead rates, Computer Assisted Design rates, and other recurring costs.

L. 7 SMALL BUSINESS SUBCONTRACTING PLANS

NASA is committed to providing Small Disadvantaged Businesses (SDB), Historically Underutilized Business Zone (HUBZone) businesses, Service-Disabled Veteran-Owned Small Businesses (SDVOSB), Veteran-Owned Small Businesses (VOSB), Women Owned Small Businesses (WOSB), and Historically Black Colleges and Universities (HBCU)/ Minority Institutions (MI), maximum practicable opportunities to participate in Agency acquisitions at the prime contract level. The participation of NASA prime contractors in providing subcontracting opportunities to such entities is also an essential part of the Agency's commitment.

In accordance with FAR 52.219-9, Small Business Subcontracting Plan, in order to be eligible for award, large businesses must, upon the Contracting Officer's request, submit and negotiate acceptable Small Business Subcontracting Plans. Such plans are only required from large businesses selected by the Selection Authority as the most highly qualified to perform the work.

The Contracting Officer has determined small business subcontracting possibilities exist and has established an overall IDIQ small business subcontracting goal of 5%. The Contracting Officer's assessment of appropriate subcontracting goals for this acquisition, expressed as a percentage of total contract value (up to \$150M for each contract), is provided in the chart below.

SMALL BUSINESS CATEGORY	SUBCONTRACTING GOAL
Small Business	5%

SDB	2.5%
HUBZone	0.0%
SDVOSB	1.0%
VOSB	1.5%
WOSB	1.5%
Historically Black Colleges and Universities (HBCU)/ Minority Institutions (MI)	0.0%

The numbers above reflect the Contracting Officer's assessment of the appropriate subcontracting goals to be achieved at the completion of contract performance. Large businesses selected as the most highly qualified to perform the work must perform an independent assessment of the small business subcontracting opportunities and are encouraged to propose goals that are equivalent to or greater than those recommended by the Contracting Officer in their Small Business Subcontracting Plans. Small Business Subcontracting Plans must discuss the rationale for any goal proposed that is less than the Contracting Officer's recommended goal in any category, the efforts made to establish a goal for that category, and what ongoing efforts, if any, are planned during contract performance to increase participation in that category.

L. 8 SAFETY AND OCCUPATIONAL HEALTH PLANS

Firms must take all reasonable safety and occupational health measures when performing work under any NASA Center task order. Firms must comply with all Federal, State, and local laws applicable to safety and occupational health and with the safety and occupational health standards, specifications, reporting requirements, and other relevant requirements of the awarded contracts and task orders. Selected firms must submit a Safety and Occupational Health Plan.

L. 9 QUESTIONS/COMMENTS

Questions or comments must be submitted in the format of the IDIQ Question Form (Attachment 2), either in a Microsoft Excel file or in the body of an email. PDFs or read-only files are not acceptable. Questions must be sent to the Contracting Officers email identified above **no later than 10 calendar days from the RFP closing date**, to allow for analysis and dissemination of responses in advance of the submission due date. Questions received after this date will be considered but may not be answered. **Oral questions will not be accepted. Before submitting a question, please review the answers to frequently asked questions listed below.**

Additional information may be given by issuance of an amendment during the announcement period.

NOTE: This solicitation has four attachments:

Attachment 1 - Past Performance Questionnaire

Attachment 2 - IDIQ Questions Form

Attachment 3 - Standard Form 330 Architect-Engineer Qualifications

Attachment 4 - EFSS-Box-Offeror-Proposal-Submission Instructions

Answers to Frequently Asked Questions:

1. No general breakdown of workload distribution between NASA Centers is available.
2. NASA is not able to define the location, type, or size of task orders under this contract. In general, task orders will be awarded using a technical qualification narrative to identify the best-suited firm for a particular task order.
3. The Government will only accept PPQs obtained for this solicitation. Previously obtained PPQs will not be evaluated. Please ensure that you provide a point-of-contact (POC) for PPQs submitted, so that the Government may attempt to contact them for information. The lack of a PPQ will be considered neutral (neither positive or negative). PPQs should be emailed to LaCorsha Noel and Stephen Crooks at the identified email addresses. Review of CPARs and other systems is used by the Government to supplement the PPQ data provided by the customer contacts. Any PPQs above the maximum 15 projects in section F will be removed prior to evaluation.
4. A copy of each individual license / LEED accreditation is not required. The proof of licensure may be accomplished by providing the license number and state for verification. If copies of licenses / certificates are provided, they will not count against the total page count.
5. Respondents must use the fillable version of SF330. Offers are not allowed to modify the SF 330. Offers who modify the SF 330 will be considered non-responsive.
6. A single project may be considered to include multiple phases of a single effort, to include planning and feasibility studies, permitting, preliminary engineering reports, design, engineering services during construction, activation and commissioning. General engineering contracts, IDIQ contracts, basic agreements, and basic ordering agreements are not considered "projects."
7. The Government expects the A-E to indicate the last year of their contractual involvement with the project as the year in which professional services were completed. If the A-E was contracted to provide on-going professional engineering services during construction (also known as construction administration services), then the last year for which the A-E provided those services would be indicated. If the A-E was contracted to provide services during the construction, a description of those services must also be included in the project description.
8. Tables and graphics are acceptable on supplemental sheets for Section H.
9. The Government will evaluate the A-E's specialized experience only for the projects in Section F of the SF 330. Additional information, e.g. continuation of Section F box 24, for these projects may be included in Section H, but information regarding specialized experience for projects in excess of the projects listed in Section F will not have a positive influence on the evaluation of the A-E's specialized experience. Any additional information included in section H may provide context and example information of section H.

10. Will firms be required to submit certified cost and pricing data audits and historical contract data from previous contracts prior to award submission? Answer: Yes, all firms will need to submit an audit, independent contractor or DCAA.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.204-7 Alternate I Deviation	System for Award Management - Registration Alternate I Deviation	Nov 2025
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024
52.215-1 Deviation	Instructions to Offerors - Competitive Acquisitions Deviation	Nov 2025
52.215-1 Alternate I Deviation	Instructions to Offerors - Competitive Acquisition Alternate I Deviation	Nov 2025
52.215-16	Facilities Capital Cost of Money.	Jun 2003
52.215-20 Alternate III	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. Alternate III	Oct 1997
52.215-22 Deviation	Limitations on Pass-Through Charges-Identification of Subcontract Effort Deviation	Nov 2025
52.216-27	Single or Multiple Awards.	Oct 1995
52.219-31	Notice of Small Business Reserve.	Mar 2020
52.233-2 Deviation	Service of Protest Deviation	Nov 2025
52.237-1	Site Visit.	Apr 1984

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.233-70 Deviation	Protests to NASA Deviation	Sep 2025

FAR Clauses Incorporated by Full Text

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data (NOV 2025) (Deviation)

(a) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, offerors may submit a written request for exception by submitting the information described in the following subparagraphs. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.

(i) Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product and commercial service exception. For a commercial product and commercial service exception, the offeror shall submit, at a minimum, information on prices at which the same item or similar items have previously been sold in the commercial market that is adequate for evaluating the reasonableness of the price for this acquisition. Such information may include-

(A) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the

proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities;

(B) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market;

(C) For items included on an active Federal Supply Schedule contract, proof that an exception has been granted for the schedule item.

(2) The offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the offeror's determination of the prices to be offered in the catalog or marketplace.

(b) *Requirements for certified cost or pricing data.* If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The offeror shall prepare and submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in Table 15-1 of FAR 15.408-2, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-1 are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.403-4.

(End of provision)

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data (NOV 2025) Alternate IV (Deviation)

As prescribed in 15.110(t)(4), replace the text of the provision with the following:

(a) Submission of certified cost or pricing data is not required.

(b) Provide data described below: [Insert description of the data and the format that are required, including the access to records necessary to permit an adequate evaluation of the proposed price in accordance with 15.4.]

52.216-1 Type of Contract (NOV 2025) (Deviation)

The Government contemplates award of a *Indefinite Delivery, Indefinite Quantity contracts with firm-fixed priced task orders* contract resulting from this solicitation.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR site: <https://www.acquisition.gov/browse/index/far>

NFS site: <https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any *NASA Federal Acquisition Regulation Supplement* (48 CFR Chapter 18) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section M - Evaluation Factors for Award

M. 1 GENERAL

Proposals will be evaluated by the evaluation team in accordance with applicable regulations, including the Federal Acquisition Regulation (FAR) and the NASA FAR Supplement (NFS). The evaluation team will conduct the evaluation activities and report its findings to the Source Selection Authority (SSA), who is responsible for making the source selection decision. Acceptable proposals will be evaluated against the evaluation factors set forth in **paragraph M. 5** below. Offerors must meet all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements, as well as the evaluation factors. Incomplete proposals may be deemed unacceptable and removed from further consideration.

M. 2 BASIS FOR AWARD

This acquisition will follow the evaluation process in accordance with FAR 36.202-1 and the procedures of FAR Part 15, Contracting by Negotiation.

This competitive best value source selection will be conducted in accordance with Federal Acquisition Regulation (FAR) Part 15 and NASA FAR Supplement 1815.305. Awards will be made to the offerors who are deemed responsible in accordance with Federal Acquisition Regulation (FAR) Part 9; whose proposal conforms to the solicitation's requirements, and is determined, by an integrated assessment of the evaluation criteria to represent the Best Value to the Government, consistent with procedures identified at Paragraph M.5.

M. 3 AWARD WITHOUT DISCUSSIONS

In accordance with FAR 52.215-1, the Government intends to evaluate proposals and make awards without discussions (except for clarifications as described in FAR 15.202(a)(2)). Therefore, offerors are encouraged to submit their best proposal in the initial submission. However, the Government reserves the right to conduct discussions if the Contracting Officer determines them to be necessary. Multiple awards may be made as a result of this solicitation.

M. 4 EVALUATION PROCESS

Offerors will be checked in the System for Award Management (SAM) for current entity registration, representations and certifications, and the exclusions. Proposals will also be checked for minor informalities or irregularities.

Review for Responsiveness: The Government will review all proposals to determine if each offeror has submitted a responsive proposal, and that all required documentation complies with the solicitation instructions. Review of the System for Award Management (SAM) will be conducted to determine if an offeror has an active exclusion, as well as a review of the Offerors Representations and Certifications to determine eligibility for award and firms assigned the NAICS code 541330, Engineering Services. All other participants are deemed ineligible to submit offers. Any non-responsive proposal will be handled in accordance with NFS 1815.108-71, "Identification of Unacceptable Proposals", Offerors whose proposals are found to be non-responsive in any area or offerors who has an active exclusion listed in SAM will be eliminated from the competition without further consideration, all other offers will be considered responsive and will move forward for further evaluation.

M. 5 SUBMISSION EVALUATION CRITERIA

Firms must submit a completed SF 330, Architect-Engineering Qualifications, Parts I and II and include specific information addressing each of the five selection criteria described in this solicitation. Firms will be

evaluated to determine the most highly qualified in relation to the selection criteria. Failure to provide the requested data or to comply with the instructions in this notice will result in an evaluation that a firm is non-responsive.

The following factors will be used in the evaluation of submittals to this solicitation. NASA will consider the immediate past five years as the period of time for evaluation.

1. Specialized experience and technical competence in the types of work required. Through the projects provided in Section F of the SF 330, the A-E firm must demonstrate experience managing and performing planning, design, and engineering services during construction of engineering infrastructure, equipment, and facilities, including new construction or modifications of existing facilities, working in multiple project phases, and cost analysis. Firms will be evaluated on recent and relevant demonstrated experience managing and performing in all areas of the A-E Scope of Services, including the following:

- a. Designing and providing construction documents for a variety of engineering projects, including civil, structural, mechanical, electrical, controls, fire protection and fire alarm, and architecture as identified in Section III above.
- b. Preparation of specifications using the SpecsIntact and/or MasterSpecs format system;
- c. Providing engineering services during construction, including shop drawing review and disposition, Request for Information responses, Engineering Order development, construction inspection services, review and incorporation of contractor redline/record drawings for as-built drawing preparation, and project closeout;
- d. Designing and providing construction documents for large, complex multidiscipline design and construction projects on new facilities and infrastructure, modifications to existing facilities and infrastructure, and maintenance and repair projects.
- e. Preparing planning studies, including development of requirements, preparing engineering evaluations, project scoping, and/or design-build bridging documents.
- f. Developing cost and constructability analyses, including cost-benefit analyses, life-cycle cost analyses, parametric cost estimating, and detailed cost estimates/quantity takeoffs;
- g. Providing A-E services for engineering projects contracted with the Federal Government or other entities with special requirements or constraints, such as security background checks, Buy American Act requirements, classification of design documentation, and similar requirements and regulations.
- h. Providing A-E services located on a NASA Center, military base or other federal property.

For evaluation purposes, emphasis will be placed on projects demonstrating effective and reliable design of engineering projects of the types listed in subparagraph 1.a., above and in coordination with the scope and services covered in C-1. Statement of Work of the solicitation. The Government will not consider repeated information of what is provided in the solicitation itself. Firms shall state specifically what engineering services the firm provided on the submitted projects. Do not describe the project or facility as much as describe what role and what services your firm provided to demonstrate the specialized experience and technical competence.

Selection Weight: 35 percent

2. Professional qualifications necessary for satisfactory performance of required services. Basis of evaluation will be the information provided in Section E of the SF 330.

Firms will be evaluated with major emphasis placed on professionals experienced in the design of large, technically complex, multidiscipline projects, and engineering services during construction. Additional major emphasis will be placed on PEs' qualifications showing experience in modern engineering analysis through software tools that may include, but not limited to; RISA 3D, STAAD, ICPR, AFTArrow, CAESAR, SKM, ETAP, CREO, etc.

Firms will be evaluated with moderate emphasis placed on professionals providing supporting design elements to the focused work, management, construction cost estimators, and drafting.

Selection Weight: 35 percent

3. **PAST PERFORMANCE.** The Government will assess the firm's past performance on the projects identified in section F of the SF 330 with respect to cost control, quality of work, and compliance with performance schedules, as determined from the completed Past Performance Questionnaires (PPQs) submitted by customer contacts, as well as information obtained from other sources. The firm's history of working relationships and management of project teams may also be considered when reviewing past performance. Other sources may include, but are not limited to, Government past performance databases (e.g., Contractor Performance Assessment Reporting System (CPARS), etc.), and interviews with previous and current customers. The Government may also consider the firm's past performance on projects other than those provided in Section F of the SF 330 using other sources as described above. The recency and relevance of the information, source of the information, context of the data, and general trends in the firm's past performance will be considered. The Government will not disclose the names of persons/companies who provide performance information. Firms may provide information on problems encountered on identified contracts and the firm's corrective actions in their description of the project in Section F. If, during the course of the evaluation, the Government obtains adverse information to which a firm has not previously had an opportunity to respond, the Government will afford the firm an opportunity to clarify the adverse information.

The following areas will be evaluated:

Recency Assessment: An assessment of the past performance information will be made to determine if it is recent. To be recent, the effort must have been completed or performed during the past five (5) years from the date of the issuance of this solicitation. Efforts that have not yet been completed shall have had at least six (6) months of performance prior to the date of issuance of this solicitation. Past performance information that fails these conditions shall not be evaluated. If the removal of one or more projects from the past performance evaluation pool results in the number of evaluated projects to fall below the minimum project requirement of five, the offeror will be removed from further consideration for award.

Relevance Assessment: The Government will conduct an evaluation of all recent performance information obtained to determine how closely the effort relates to the SERAE II IDIQ. The past performance summary and information that may be obtained from other sources will be used to establish the degree of relevance of the past performance.

The Government will use the following degrees of relevance when assessing recent contracts:

Degree	Description
RELEVANT (R)	

	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
NOT RELEVANT (NR)	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Past Performance Ratings: The offeror's relevant experience and past performance will be reviewed and an assessment made that reflects the Government's judgment of the probability of each offeror successfully accomplishing the proposed effort based on that offeror's demonstrated performance. Each individual project will not be individually rated; however, the information for each project will be considered and that data will be consolidated into a single level of confidence rating in accordance with the following:

Very High Level of Confidence

The offeror's relevant past performance is of exceptional merit and is very highly pertinent to this acquisition, indicates exemplary performance in a timely, efficient, and economical manner and very minor (if any) problems with no adverse effect on overall performance. Based on the offeror's performance record, there is a very high level of confidence that the offeror will successfully perform the required effort. (One or more significant strengths exist. No significant weaknesses exist.)

High Level of Confidence

The offeror's relevant past performance is highly pertinent to this acquisition; demonstrating very effective performance that would be fully responsive to contract requirements. Offeror's past performance indicates that contract requirements were accomplished in a timely, efficient, and economical manner for the most part, with only minor problems that had little identifiable effect on overall performance. Based on the offeror's performance record, there is a high level of confidence that the offeror will successfully perform the required effort. (One or more significant strengths exist. Strengths outbalance any weakness.)

Moderate Level of Confidence

The offeror's relevant past performance is pertinent to this acquisition, and it demonstrates effective performance. Performance was fully responsive to contract requirements; there may have been reportable problems, but with little identifiable effect on overall performance. Based on the offeror's performance record, there is a moderate level of confidence that the offeror will successfully perform the required effort. (There may be strengths or weaknesses, or both.)

Low Level of Confidence

The offeror's relevant past performance is at least somewhat pertinent to this acquisition, and it meets or slightly exceeds minimum acceptable standards. Offeror achieved adequate results; there may have been reportable problems with identifiable, but not substantial, effects on overall performance. Based on the offeror's performance record, there is a low level of confidence that the offeror will successfully perform the required effort. Changes to the offeror's existing processes may be necessary in order to achieve contract requirements. (One or more weaknesses exist. Weaknesses outbalance strengths.)

Very Low Level of Confidence

The offeror's relevant past performance does not meet minimum acceptable standards in one or more areas; remedial action was required in one or more areas. Performance problems occurred in one or more areas which, adversely affected overall performance. Based on the offeror's performance record, there is a very low level of confidence that the offeror will successfully perform the required effort. (One or more deficiencies or significant weaknesses exist.)

Neutral

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance [see FAR 15.305(a) (2) (ii) and (iv)].

Selection Weight: 10 percent

4. *Capacity to accomplish multiple task orders.* The A-E firm will be evaluated on the organizational structure, identification of key personnel, and a demonstrated history of working together. In addition, the A-E firm will be evaluated on the following narrative, which should be addressed in Part I, Section H:

An anticipated high-volume workload and demanding schedules should be anticipated. Describe the availability of the firm to perform multiple task orders simultaneously, particularly across multiple geographic locations. Describe the availability of the firm to provide qualified staffing to support key personnel to ensure quality and responsiveness of services across the NASA Centers identified in Section B-1 of the solicitation.

Generic statements of availability/capacity will be considered less favorably.

Selection Weight: 10 percent

5. *Location in the general geographical area and knowledge/experience at the following NASA Center locations.* Projects submitted under "Specialized Experience" will be used to evaluate this section.

Firms will be evaluated on key personnel's knowledge and experience working at the locations with major emphasis placed on project experience at any of the following NASA Centers or supporting centers: Kennedy Space Center (KSC), Florida; Cape Canaveral Space Force Station (CCSFS), Florida; Johnson Space Center (JSC), Houston, TX; Marshall Space Flight Center (MSFC) Alabama, Michoud Assembly Facility (MAF) Louisiana, and Stennis Space Center (SSC) Mississippi.

Firms will be evaluated on key personnel's knowledge and experience working at the locations with moderate emphasis will be placed on project experience at other NASA facilities or other federally regulated sites.

Selection Weight: 10 percent

M. 6 CONTRACTING OFFICER'S INITIAL SUBMISSION REVIEW

Firms will be checked against the System for Award Management (SAM) List of Parties Excluded from Federal Procurement and Non-Procurement Programs. Firms appearing on the List will be eliminated without further consideration.

Firms will also be checked against the U.S. Department of Labor, Occupational Safety and Health Administration's data base for safety citations/violations. Reports of significant safety citations or violations will be referred to the KSC Safety Office for further review. Firms must address any known OSHA violations in Section H of the SF 330.

In accordance with provision at FAR 52.204-7, System for Award Management, a firm submitting a response to this solicitation acknowledges that it must be registered in the SAM database prior to award, during performance, and through final payment of any contract resulting from this solicitation.

Submissions will be checked for informalities or irregularities, **with particular emphasis to ensuring that no alterations were made to the SF 330.**

M. 7 NEGOTIATIONS

Discussions/interviews will be held with up to twelve qualified firms and the final selection decision will be made by the designated Selection Authority. The final selection will be a listing, in order of preference, of the firms considered most highly qualified to perform the work and will authorize the Contracting Officer to begin negotiations with the selected firms. Selected firms will be required to submit Advanced Pricing Rate Proposals, Small Business Subcontracting Plans (applicable to large businesses only), and Safety and Occupational Health Plans. These three documents should NOT be submitted with original responses and will be due within 14 calendar days from the date requested by the Contracting Officer.

If a mutually satisfactory contract cannot be negotiated, the Contracting Officer will obtain a written final proposal revision from the firm, and notify the firm negotiations have been terminated. The Contracting Officer will then initiate negotiations with the next firm on the final selection list. This procedure will continue until a mutually satisfactory contract has been negotiated.

M. 8 ADVANCED PRICING RATE AGREEMENTS (APRAs)

For the purpose of simplifying and increasing efficiency in the negotiation and execution of task orders under the IDIQ contracts, firms selected by the Selection Authority as the most highly qualified to perform the work must submit APRA proposals. The APRA proposals will be negotiated and incorporated into the resultant IDIQ contract. Firms failing to negotiate acceptable APRAs with the Contracting Officer will be ineligible for award.

M. 9 SMALL BUSINESS SUBCONTRACTING PLANS

In accordance with FAR 52.219-9, Small Business Subcontracting Plan, in order to be eligible for award, large businesses must, upon the Contracting Officer's request, submit and negotiate acceptable Small Business Subcontracting Plans. Such plans are only required from large businesses selected by the Selection Authority as the most highly qualified to perform the work.

The Small Business Subcontracting Plans will be negotiated and incorporated into the IDIQ contract. Selected large businesses failing to negotiate acceptable Small Business Subcontracting Plans with the Contracting Officer will be ineligible for award.

M. 10 SAFETY AND OCCUPATIONAL HEALTH PLANS

Firms must take all reasonable safety and occupational health measures when performing work under any NASA Center task order. Firms must comply with all Federal, State, and local laws applicable to safety and occupational health and with the safety and occupational health standards, specifications, reporting requirements, and other relevant requirements of the awarded contracts and task orders. Selected firms must submit a Safety and Occupational Health Plan. The submitted plans will be negotiated and incorporated into the IDIQ contract. Firms failing to negotiate acceptable Safety and Occupational Health Plans with the Contracting Officer will be ineligible for award.

M. 11 SOURCE SELECTION DECISION

Up to ten IDIQ contracts, with up to three awards reserved for small business concerns may be made. The award of multiple IDIQ Contracts will be based on the outlined in FAR 36.202 and the procedures of FAR Part 15, Contracting by Negotiation. The Source Selection Authority, exercising prudent business judgment, will make the source selection decisions to those offerors selected that provide a proposal that meets the evaluation criteria.

[END OF SECTION]